

SENATE BILL 1249

By Yarbro

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to education.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-10-1403, is amended by deleting subsection (e) and substituting:

(e)

(1) A parent of a participating student:

(A) Shall ensure that the participating student is annually administered all Tennessee comprehensive assessment program (TCAP) tests, or successor tests authorized by the state board of education, that are administered to a public school student in the same grade or same course subject as the participating student;

(B) In grade eleven (11) shall ensure that the student is administered the examination that is administered to public school students in grade eleven (11) pursuant to § 49-6-6001(b)(1); and

(C) In any of the grades kindergarten through three (K-3) shall ensure that the participating student is annually administered each of the three (3) Tennessee universal reading screeners, or universal reading screeners approved by the state board of education, as described in § 49-1-905(c), during each of the three (3) administration windows established by the department of education pursuant to § 49-1-905(c)(1).

(2) A participating student's results on the tests administered pursuant to this subsection (e) must be reported to the parent of the student.

(3) Students with disabilities who would have participated in the alternate assessment, as determined on the student's IEP, are exempt from the requirements in this subsection (e).

SECTION 2. Tennessee Code Annotated, Section 49-10-1404, is amended by adding the following as new subsections:

(d)

(1) A participating school shall publish the school's lesson plans and syllabus for each class offered by the school, a current list of materials in the school's library collection, and the academic standards for each class offered by the school on the school's website.

(2) As used in this subsection (d):

(A) "Library collection" means the materials made available to students by the participating school, including materials made available to students as part of a course curriculum; and

(B) "Materials" means books, periodicals, newspapers, manuscripts, films, prints, documents, microfilm, discs, cassettes, videotapes, video games, applications, and subscription content in any form.

(e) A participating school shall ensure that all educators of the participating school hold a valid license to teach in a public school that is issued by the state board of education.

SECTION 3. Tennessee Code Annotated, Section 49-6-2607(e), is amended by adding the following as new subdivisions:

(6)

(A) Publish the school's lesson plans and syllabus for each class offered by the school, a current list of materials in the school's library collection, and the academic standards for each class offered by the school on the school's website; and

(B) As used in this subdivision (e)(6):

(A) "Library collection" means the materials made available to students by the participating school, including materials made available to students as part of a course curriculum; and

(B) "Materials" means books, periodicals, newspapers, manuscripts, films, prints, documents, microfilm, discs, cassettes, videotapes, video games, applications, and subscription content in any form; and

(7) Ensure that all educators of the participating school hold a valid license to teach in a public school that is issued by the state board of education.

SECTION 4. Tennessee Code Annotated, Section 49-6-2606(a)(1), is amended by deleting the subdivision and substituting:

(1) As a condition of participating in the program:

(A) Participating students must be annually administered the Tennessee comprehensive assessment program (TCAP) tests, or successor tests authorized by the state board of education, that are administered to a public school student in the same grade or same course subject as the participating student;

(B) Participating students in grade eleven (11) must be administered the examination that is administered to public schools students in grade eleven (11) pursuant to § 49-6-6001(b)(1); and

(C) Participating students in kindergarten through grade three (K-3) must annually be administered each of the three (3) Tennessee universal reading screeners, or universal reading screeners approved by the state board of education, as described in § 49-1-905(c), during each of the three (3) administration windows established by the department of education pursuant to § 49-1-905(c)(1).

SECTION 5. This act takes effect July 1, 2025, the public welfare requiring it.